

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                     |                           |                                                       |                                    |                                 |
|--------------------------------------------------|-------------------------------------|---------------------------|-------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Ariel Courage                   | Team:<br>Squad #06                  | CCRB Case #:<br>201603963 | <input type="checkbox"/> Force                        | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                     |                           | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Monday, 04/25/2016 7:20 PM   | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>10/25/2017  | Precinct:<br>49                                       |                                    |                                 |
| Date/Time CV Reported<br>Mon, 05/09/2016 2:46 PM | CV Reported At:<br>CCRB             | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Mon, 05/09/2016 2:46 PM |                                    |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s)       | Shield | TaxID  | Command |
|--------------------------|--------|--------|---------|
| 1. POM Gregory Hernandez | 26400  | 938661 | 049 PCT |
| 2. POM Jameson Masker    | 21444  | 945236 | 049 PCT |
| 3. SGT Michael Eichner   | 794    | 941007 | 049 PCT |

| Officer(s)                | Allegation                                                    | Investigator Recommendation |
|---------------------------|---------------------------------------------------------------|-----------------------------|
| A . POM Gregory Hernandez | Abuse: Police Officer Gregory Hernandez questioned § 87(2)(b) | A . Substantiated           |
| § 87(4-b) § 87(2)(g)      | § 87(2)(b)                                                    | § 87(2)(b)                  |
| § 87(2)(b)                | § 87(2)(b)                                                    | § 87(2)(b)                  |
| § 87(2)(b)                | § 87(2)(b)                                                    | § 87(2)(b)                  |

### Case Summary

On May 9, 2016, § 87(2)(b) called the CCRB to file this complaint (BR 01).

On April 25, 2016, at approximately 7:20 p.m., PO Gregory Hernandez, PO Jameson Masker, and Sgt. Michael Eichner, all of the 49<sup>th</sup> Precinct, pulled over § 87(2)(b) on § 87(2)(b) in the Bronx.

In the course of the vehicle stop, PO Hernandez allegedly asked § 87(2)(b) if he had anything in his vehicle, such as knives, guns, or drugs (**Allegation A**). PO Hernandez also asked § 87(2)(b) for his permission to search his vehicle (**subsumed under Allegation A**). § 87(2)(b) refused to allow PO Hernandez to search his vehicle.

PO Hernandez issued § 87(2)(b) a summons for § 87(2)(b) (BR 02).

§ 87(2)(g), § 87(4-b)

§ 87(2)(b) provided video footage that he obtained from § 87(2)(b), where his alleged disorderly conduct violation occurred. § 87(2)(g)

§ 87(2)(g)

### Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint § 87(2)(b).
- On June 27, 2016, a Notice of Claim request was submitted to the Comptroller's office. The results will be added to the case file upon receipt (BR 05).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

### Civilian and Officer CCRB Histories

- § 87(2)(b) has been involved in one prior CCRB case (BR 08):
  - § 87(2)(b)
- PO Hernandez has been a member of the service for 10 years. There are four allegations against him from two prior cases that occurred in 2014 and 2016, none of which was substantiated. In addition, there is one allegation against him from a case that occurred in 2016, which remains open. § 87(2)(g)
- Sgt. Eichner has been a member of the service for 10 years. There are 13 allegations against Sgt. Eichner stemming from three other complaints that occurred between 2006 and the present, none of which has been substantiated. § 87(2)(g)
- PO Masker has been a member of the service for 8 years. There are six prior allegations against him stemming from one complaint that occurred in 2016, none of which were substantiated. § 87(2)(g)

CCRB Case Number 201603963

## Findings and Recommendations

### Allegations not pleaded

- § 87(2)(g)

### Allegation A – Abuse of Authority: PO Gregory Hernandez questioned § 87(2)(b)

The circumstances of this allegation are essentially undisputed.

§ 87(2)(b) (BR 01 and 09) said that he was waiting for parking in the general vicinity of § 87(2)(b). § 87(2)(b) who is a mechanic, was driving a vehicle that his friend had given him to repair, a 2003 black BMW. § 87(2)(b) was with his brother, § 87(2)(b) who was sitting in the front passenger seat. § 87(2)(b) has two lanes, one in each direction, with parallel parking at the curb on either side. § 87(2)(b) stopped his vehicle in the northbound lane next to parked vehicles, waiting for a spot to become available. § 87(2)(b) remained seated in his vehicle with the engine running for approximately two minutes. Other motorists passed § 87(2)(b) by driving around his vehicle into the lane of oncoming traffic. § 87(2)(b) estimated that he was stopped on § 87(2)(b) in this fashion for approximately two minutes before he drove away to find parking in another area. Once § 87(2)(b) drove away and turned right from § 87(2)(b) onto § 87(2)(b), an unmarked police vehicle pulled him over.

PO Hernandez approached § 87(2)(b)'s driver's side window. PO Masker stood near the rear driver side of the vehicle. Sgt. Eichner approached the front passenger side. Once the officers approached, § 87(2)(b) asked PO Hernandez why he was being pulled over. PO Hernandez replied that a black BMW had participated in a narcotics transaction earlier that day. § 87(2)(b) provided his license and registration to PO Hernandez. PO Hernandez asked who the vehicle belonged to and § 87(2)(b) explained that he was a mechanic and was fixing the vehicle for a friend. § 87(2)(b) offered to call the friend who owned the vehicle to the scene. PO Hernandez told § 87(2)(b) that he could not take him at his word, and asked him further questions about the vehicle, though § 87(2)(b) could not specify what these questions were. § 87(2)(b) estimated that this questioning lasted about five minutes.

PO Hernandez then walked back to his police vehicle with Sgt. Eichner and PO Masker. After approximately 10 minutes, PO Hernandez came back to § 87(2)(b)'s vehicle. PO Hernandez asked § 87(2)(b) whether he had anything in his vehicle, such as knives, guns, or drugs. § 87(2)(b) denied that he did. PO Hernandez also requested to search § 87(2)(b)'s vehicle. § 87(2)(b) refused. § 87(2)(b) also refused to exit his vehicle when PO Hernandez instructed him to do so. When § 87(2)(b) asked PO Hernandez why he wanted to check his vehicle, PO Hernandez replied that they had checked his information and found that he had previously been arrested for carrying a knife. § 87(2)(b) asked what this prior arrest had to do with the vehicle stop.

PO Hernandez then went to the police vehicle with Sgt. Eichner and PO Masker before again returning to § 87(2)(b)'s vehicle. PO Hernandez told § 87(2)(b) that he had been double parked earlier, and issued him a summons for § 87(2)(b).

PO Hernandez (BR 10) said he was conducting patrol in the vicinity of § 87(2)(b) when he observed § 87(2)(b) in his vehicle. PO Hernandez characterized the vicinity as

being drug-prone, specifically to marijuana and heroin. PO Hernandez became aware of this in his approximately 10 years of patrol in that area, through briefings he receives at Roll Calls regarding crime in the precinct, and through narcotics-related arrests PO Hernandez has made in that area.

§ 87(2)(b) was stopped in a lane of traffic next to vehicles parked at the curb. PO Hernandez circled around the block approximately two to three times. Other vehicles, including PO Hernandez's own, were stuck waiting behind § 87(2)(b)'s vehicle for vehicles in the oncoming lane to drive by so that they could pass § 87(2)(b). PO Hernandez observed that § 87(2)(b) had a passenger in the front seat.

PO Hernandez pulled in behind § 87(2)(b) intending to stop him to issue him a summons. PO Hernandez did not have his lights or sirens activated at that time. § 87(2)(b) then drove away northbound on § 87(2)(b) before making a right turn onto § 87(2)(b). As § 87(2)(b) turned right onto § 87(2)(b), he rolled through a stop sign without coming to a complete stop. PO Hernandez did not suspect either the motorist or his passenger of any crimes, aside from the violation of § 87(2)(b) and the VTL infraction of failing to stop at a sign.

Once § 87(2)(b) pulled over, PO Hernandez approached his driver side window. § 87(2)(b) provided his license to PO Hernandez upon his request, but had to search in his glove box and center console for the registration. PO Hernandez could see § 87(2)(b)'s hands the entire time. Based upon the fact that § 87(2)(b) was not immediately able to locate the registration, PO Hernandez thought the vehicle might not have belonged to § 87(2)(b). PO Hernandez asked § 87(2)(b) if the vehicle was his. § 87(2)(b) replied that it belonged to a friend, and offered to call this friend to prove that he was just borrowing it. PO Hernandez explained to § 87(2)(b) that this would not be conclusive proof that he was just borrowing the vehicle, as he would not know with whom he was speaking on the phone.

§ 87(2)(b) seemed nervous insofar as he was shaking and paused often between statements. § 87(2)(b) began to grow irate as the incident progressed. PO Hernandez then ordered § 87(2)(b) to exit the vehicle. PO Hernandez did so as § 87(2)(b)'s nervousness made him uncomfortable, and PO Hernandez decided he would feel more comfortable with § 87(2)(b) standing outside the vehicle with his hands visible to PO Hernandez while PO Hernandez wrote him a summons. § 87(2)(b) refused to get out of his vehicle and became more irate, yelling that he was tired of being stopped by the NYPD for no reason.

PO Hernandez then returned to the police vehicle with Sgt. Eichner and PO Masker. The officers discussed whether they should escalate the encounter by calling another unit to the scene or by forcibly removing § 87(2)(b) from the vehicle. The officers eventually concluded that it was not worth it and opted to issue § 87(2)(b) a summons for § 87(2)(b).

§ 87(2)(b)  
§ 87(2)(b)  
§ 87(2)(b) PO Hernandez used his discretion not to issue § 87(2)(b) a summons for failing to stop at the sign.

PO Hernandez did not recall ever telling § 87(2)(b) that he was being pulled over because his vehicle matched the description of a vehicle that had earlier participated in a drug transaction. PO Hernandez did not recall there being such a transaction. PO Hernandez thought he probably asked § 87(2)(b) if he had any knives, guns, or drugs in the vehicle, as he asks this question routinely upon conducting car stops for safety reasons. PO Hernandez did not have any reason to believe that § 87(2)(b) had knives, drugs, or guns in his vehicle. PO Hernandez did not recall whether he ever asked § 87(2)(b) for permission to search his vehicle or not, but thought he



Squad:

|               |           |       |       |
|---------------|-----------|-------|-------|
| Investigator: | _____     | _____ | _____ |
|               | Signature | Print | Date  |

|               |                 |       |       |
|---------------|-----------------|-------|-------|
| Squad Leader: | _____           | _____ | _____ |
|               | Title/Signature | Print | Date  |

|           |                 |       |       |
|-----------|-----------------|-------|-------|
| Reviewer: | _____           | _____ | _____ |
|           | Title/Signature | Print | Date  |